

COMMITTEE ON APPROPRIATIONS, TRANSPORTATION AND TECHNOLOGY
SENATE AMENDMENTS TO H.B. 2051
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 36-414, Arizona Revised Statutes, is amended
3 to read:

4 36-414. Health services licensing fund; exemption

5 A. The health services licensing fund is established consisting of
6 monies deposited pursuant to sections 30-654, 32-1308, 32-2805, 36-405,
7 36-765.05, 36-766.06, 36-767.05, 36-851.01, 36-882, 36-897.01, 36-1903,
8 36-2063 and 36-4204. The department of health services shall administer
9 the fund.

10 B. Monies in the fund are subject to legislative appropriation.

11 C. Monies in the fund are exempt from the provisions of section
12 35-190 relating to lapsing of appropriations. >>

13 <<Sec. 2. Title 36, chapter 6, Arizona Revised Statutes, is amended
14 by adding article 7.3, to read:

15 ARTICLE 7.3. LACTATION CARE PROVIDERS

16 36-767. Definitions

17 [IN THIS ARTICLE, UNLESS THE CONTEXT OTHERWISE REQUIRES:

18 1. "APPROVED CERTIFICATION" MEANS ONE OF THE FOLLOWING:

19 (a) AN INTERNATIONAL BOARD-CERTIFIED LACTATION CONSULTANT
20 CERTIFICATION.

21 (b) A CERTIFIED LACTATION COUNSELOR CERTIFICATION.

22 (c) A CERTIFIED LACTATION EDUCATOR CERTIFICATION.

23 (d) AN INDIGENOUS LACTATION COUNSELOR CERTIFICATION.

24 (e) ANY OTHER LACTATION CARE PROVIDER CERTIFICATION FROM A PROGRAM
25 ACCREDITED BY A NATIONALLY OR INTERNATIONALLY RECOGNIZED ACCREDITING
26 AGENCY THAT IS APPROVED BY THE DEPARTMENT.

27 2. "DEPARTMENT" MEANS THE DEPARTMENT OF HEALTH SERVICES.

28 3. "DIRECTOR" MEANS THE DIRECTOR OF THE DEPARTMENT.

1 4. "LACTATION CARE PROVIDER" MEANS A PERSON WHO PROVIDES CLINICAL
2 OR NONCLINICAL LACTATION CARE, EDUCATION AND SUPPORT TO FAMILIES.

3 5. "STATE-CERTIFIED LACTATION CARE PROVIDER" MEANS A LACTATION CARE
4 PROVIDER TO WHOM THE DEPARTMENT HAS ISSUED A CERTIFICATE TO PRACTICE AS A
5 CERTIFIED LACTATION CARE PROVIDER IN THIS STATE.]

6 36-767.01. Application for certificate; certification;
7 fingerprinting; renewal

8 [A. A PERSON MAY APPLY TO THE DIRECTOR FOR A CERTIFICATE TO
9 PRACTICE AS A STATE-CERTIFIED LACTATION CARE PROVIDER ON A FORM PRESCRIBED
10 BY THE DIRECTOR AND SHALL FURNISH THE INFORMATION REQUIRED BY THE
11 DIRECTOR.]

12 B. THE DIRECTOR SHALL GRANT A LACTATION CARE PROVIDER CERTIFICATE
13 TO A PERSON WHO MEETS ALL OF THE FOLLOWING:

14 1. HOLDS A CURRENT APPROVED CERTIFICATION OR OTHERWISE MEETS
15 MINIMUM QUALIFICATIONS, EDUCATION AND TRAINING REQUIREMENTS ESTABLISHED BY
16 THE DIRECTOR.

17 2. IS AT LEAST EIGHTEEN YEARS OF AGE.

18 3. PAYS THE APPLICABLE FEES. THE DIRECTOR SHALL PRESCRIBE BY RULE
19 A SLIDING FEE SCALE FOR ALL FEES REQUIRED BY THIS ARTICLE.

20 4. POSSESSES A VALID FINGERPRINT CLEARANCE CARD ISSUED PURSUANT TO
21 TITLE 41, CHAPTER 12, ARTICLE 3.1.

22 C. A LACTATION CARE PROVIDER CERTIFICATE IS VALID FOR TWO
23 YEARS. THE CERTIFICATE HOLDER SHALL RENEW THE CERTIFICATE ONCE EVERY TWO
24 YEARS BY APPLYING TO THE DIRECTOR AND PAYING THE APPLICABLE RENEWAL
25 FEE. A PERSON SHALL FILE AN APPLICATION FOR RENEWAL AT LEAST THIRTY DAYS
26 AND NOT MORE THAN NINETY DAYS BEFORE THE DATE THE CURRENT CERTIFICATE
27 EXPIRES.]

28 36-767.02. Powers and duties of the director; rules; waiver

29 [A. THE DIRECTOR, BY RULE, SHALL:

30 1. OUTLINE THE SCOPE OF PRACTICE AND THE CORE COMPETENCIES OF
31 STATE-CERTIFIED LACTATION CARE PROVIDERS, INCLUDING THE SKILLS AND AREAS
32 OF KNOWLEDGE THAT ARE ESSENTIAL TO ASSIST FAMILIES AND BRING ABOUT
33 EXPANDED HEALTH AND WELLNESS IN DIVERSE COMMUNITIES.

34 2. DESCRIBE AND DEFINE REASONABLE EDUCATION AND TRAINING
35 REQUIREMENTS FOR STATE-CERTIFIED LACTATION CARE PROVIDERS.

36 3. ESTABLISH CRITERIA FOR GRANTING, DENYING, SUSPENDING AND
37 REVOKING STATE-CERTIFIED LACTATION CARE PROVIDER CERTIFICATES IN ORDER TO
38 PROTECT THE PUBLIC HEALTH AND SAFETY.

39 B. THE DIRECTOR MAY ADOPT RULES:

40 1. THAT ARE NECESSARY FOR THE PROPER ADMINISTRATION AND ENFORCEMENT
41 OF THIS ARTICLE.

42 2. THAT ALLOW FOR RECIPROCITY AGREEMENTS, INCLUDING WITH THE INDIAN
43 HEALTH SERVICE.

1 C. THE DIRECTOR SHALL WAIVE THE MINIMUM EDUCATION AND TRAINING
2 REQUIREMENTS FOR CERTIFICATION FOR APPLICANTS WHO HOLD A CURRENT APPROVED
3 CERTIFICATION.]

4 36-767.03. Denial, suspension or revocation of certificate;
5 hearings; tribal jurisdiction

6 [A. THE DIRECTOR MAY DENY, SUSPEND OR REVOKE THE CERTIFICATE OF ANY
7 APPLICANT FOR A CERTIFICATE OR ANY STATE-CERTIFIED LACTATION CARE PROVIDER
8 WHO:

9 1. VIOLATES ANY PROVISION OF THIS ARTICLE OR RULE ADOPTED PURSUANT
10 TO THIS ARTICLE.

11 2. HAS BEEN CONVICTED OF A FELONY OR MISDEMEANOR INVOLVING MORAL
12 TURPITUDE.

13 3. INDULGES IN CONDUCT OR A PRACTICE THAT IS DETRIMENTAL TO THE
14 PUBLIC HEALTH OR SAFETY.

15 B. AFTER RECEIVING NOTIFICATION OF A DENIAL, SUSPENSION OR
16 REVOCAION PURSUANT TO SUBSECTION A OF THIS SECTION, THE APPLICANT OR
17 STATE-CERTIFIED LACTATION CARE PROVIDER MAY REQUEST A HEARING TO REVIEW
18 THE DENIAL, SUSPENSION OR REVOCAION AND, IF REQUESTED, THE DEPARTMENT
19 SHALL CONDUCT THE HEARING PURSUANT TO TITLE 41, CHAPTER 6, ARTICLE 10.

20 C. A STATE-CERTIFIED LACTATION CARE PROVIDER WHO IS EMPLOYED BY AN
21 INDIAN TRIBE AND WHO VIOLATES THIS SECTION SHALL BE UNDER TRIBAL
22 GOVERNMENT JURISDICTION. IF THE STATE-CERTIFIED LACTATION CARE PROVIDER
23 IS DETERMINED TO HAVE VIOLATED THIS SECTION, THE INFORMATION PROVIDED TO
24 THE DIRECTOR MAY RESULT IN THE DENIAL, SUSPENSION OR REVOCAION OF THE
25 STATE-CERTIFIED LACTATION CARE PROVIDER'S CERTIFICATION. INTERNAL
26 HEARINGS, APPEALS OR PENALTIES RESULTING FROM DISCIPLINARY ACTIONS BY A
27 TRIBAL GOVERNMENT ARE DEEMED TO BE THE FINAL DECISION IN ACCORDANCE WITH
28 THIS SECTION.]

29 36-767.04. Investigations; evidence

30 [THE DIRECTOR MAY INVESTIGATE INFORMATION THAT INDICATES A PERSON
31 MAY HAVE VIOLATED OR MAY BE VIOLATING THIS ARTICLE. IN CONNECTION WITH AN
32 INVESTIGATION, THE DIRECTOR MAY EXAMINE AND COPY DOCUMENTS AND OTHER
33 PHYSICAL EVIDENCE, WHEREVER LOCATED, THAT RELATE TO THE CONDUCT OR
34 COMPETENCY OF A STATE-CERTIFIED LACTATION CARE PROVIDER PURSUANT TO THE
35 REQUIREMENTS OF THIS ARTICLE.]

36 36-767.05. Fees

37 [THE DIRECTOR, BY RULE, SHALL ESTABLISH AND COLLECT NONREFUNDABLE
38 FEES FOR CERTIFICATION OF LACTATION CARE PROVIDERS UNDER THIS ARTICLE THAT
39 ARE CONSISTENT WITH FEES PRESCRIBED PURSUANT TO SECTION 36-1908. THE
40 DEPARTMENT SHALL DEPOSIT, PURSUANT TO SECTIONS 35-146 AND 35-147, ALL FEES
41 COLLECTED PURSUANT TO THIS SECTION IN A SEGREGATED ACCOUNT IN THE HEALTH
42 SERVICES LICENSING FUND ESTABLISHED BY SECTION 36-414.]

1 36-767.06. Certification not required
2 [THIS ARTICLE DOES NOT REQUIRE LACTATION CARE PROVIDERS TO BE
3 CERTIFIED BY THE DEPARTMENT IN ORDER TO PRACTICE IN THIS STATE AS A
4 LACTATION CARE PROVIDER.]
5 36-767.07. Public contracts; preference prohibited
6 [THIS STATE AND ANY POLITICAL SUBDIVISION OF THE STATE MAY NOT
7 PROVIDE A PREFERENCE IN AWARDING A PUBLIC CONTRACT FOR STATE-CERTIFIED
8 LACTATION CARE PROVIDER SERVICES OR AN ENTITY THAT EMPLOYS STATE-CERTIFIED
9 LACTATION CARE PROVIDERS.]
10 36-767.08. Lactation care providers community advisory
11 committee; members; duties
12 [A. THE LACTATION CARE PROVIDERS COMMUNITY ADVISORY COMMITTEE IS
13 ESTABLISHED CONSISTING OF AT LEAST NINE LACTATION CARE PROVIDERS, NOT MORE
14 THAN FOUR OF WHOM HOLD THE SAME APPROVED CERTIFICATION, WHO ARE APPOINTED
15 BY THE DIRECTOR. THE TERM FOR EACH ADVISORY COMMITTEE MEMBER IS TWO
16 YEARS.
17 B. THE DIRECTOR SHALL CONSULT WITH THE ADVISORY COMMITTEE REGARDING
18 IMPLEMENTING THIS ARTICLE AND THE RULES ADOPTED PURSUANT TO THIS ARTICLE.
19 THE ADVISORY COMMITTEE SHALL:
20 1. ASSIST IN THE DEVELOPMENT OF THE SCOPE OF PRACTICE AND CORE
21 COMPETENCIES FOR STATE-CERTIFIED LACTATION CARE PROVIDERS WITH DIFFERENT
22 APPROVED CERTIFICATIONS.
23 2. REVIEW RULES AND ADVISE THE DIRECTOR OF ANY NECESSARY
24 UPDATES.]>>
25 Sec. 3. Section 36-2907, Arizona Revised Statutes, is amended to
26 read:
27 36-2907. Covered health and medical services; modifications;
28 related delivery of service requirements; rules;
29 definitions
30 A. Subject to the limits and exclusions specified in this section,
31 contractors shall provide the following medically necessary health and
32 medical services:
33 1. Inpatient hospital services that are ordinarily furnished by a
34 hospital to care for and treat inpatients and that are provided under the
35 direction of a physician or a primary care practitioner. For the purposes
36 of this section, inpatient hospital services exclude services in an
37 institution for tuberculosis or mental diseases unless authorized under an
38 approved section 1115 waiver.
39 2. Outpatient health services that are ordinarily provided in
40 hospitals, clinics, offices and other health care facilities by licensed
41 health care providers. Outpatient health services include services
42 provided by or under the direction of a physician or a primary care
43 practitioner, including occupational therapy.
44 3. Other laboratory and X-ray services ordered by a physician or a
45 primary care practitioner.

1 4. Medications that are ordered on prescription by a physician or a
2 dentist who is licensed pursuant to title 32, chapter 11. Persons who are
3 dually eligible for title XVIII and title XIX services must obtain
4 available medications through a medicare licensed or certified medicare
5 advantage prescription drug plan, a medicare prescription drug plan or any
6 other entity authorized by medicare to provide a medicare part D
7 prescription drug benefit.

8 5. Medical supplies, durable medical equipment, insulin pumps and
9 prosthetic devices ordered by a physician or a primary care practitioner.
10 Suppliers of durable medical equipment shall provide the administration
11 with complete information about the identity of each person who has an
12 ownership or controlling interest in their business and shall comply with
13 federal bonding requirements in a manner prescribed by the administration.

14 6. For persons who are at least twenty-one years of age, treatment
15 of medical conditions of the eye, excluding eye examinations for
16 prescriptive lenses and the provision of prescriptive lenses.

17 7. Early and periodic health screening and diagnostic services as
18 required by section 1905(r) of title XIX of the social security act for
19 members who are under twenty-one years of age.

20 8. Family planning services that do not include abortion or
21 abortion counseling. If a contractor elects not to provide family
22 planning services, this election does not disqualify the contractor from
23 delivering all other covered health and medical services under this
24 chapter. In that event, the administration may contract directly with
25 another contractor, including an outpatient surgical center or a
26 noncontracting provider, to deliver family planning services to a member
27 who is enrolled with the contractor that elects not to provide family
28 planning services.

29 9. Podiatry services that are performed by a podiatrist who is
30 licensed pursuant to title 32, chapter 7 and ordered by a primary care
31 physician or primary care practitioner.

32 10. Nonexperimental transplants approved for title XIX
33 reimbursement.

34 11. Dental services as follows:

35 (a) Except as provided in subdivision (b) of this paragraph, for
36 persons who are at least twenty-one years of age, emergency dental care
37 and extractions in an annual amount of not more than \$1,000 per member.

38 (b) Subject to approval by the centers for medicare and medicaid
39 services, for persons treated at an Indian health service or tribal
40 facility, adult dental services that are eligible for a federal medical
41 assistance percentage of one hundred percent and that exceed the limit
42 prescribed in subdivision (a) of this paragraph.

43 12. Ambulance and nonambulance transportation, except as provided
44 in subsection G of this section.

45 13. Hospice care.

1 14. Orthotics, if all of the following apply:

2 (a) The use of the orthotic is medically necessary as the preferred
3 treatment option consistent with medicare guidelines.

4 (b) The orthotic is less expensive than all other treatment options
5 or surgical procedures to treat the same diagnosed condition.

6 (c) The orthotic is ordered by a physician or primary care
7 practitioner.

8 15. Subject to approval by the centers for medicare and medicaid
9 services, medically necessary chiropractic services that are performed by
10 a chiropractor who is licensed pursuant to title 32, chapter 8 and that
11 are ordered by a primary care physician or primary care practitioner
12 pursuant to rules adopted by the administration. The primary care
13 physician or primary care practitioner may initially order up to twenty
14 visits annually that include treatment and may request authorization for
15 additional chiropractic services in that same year if additional
16 chiropractic services are medically necessary.

17 16. For up to ten program hours annually, diabetes outpatient
18 self-management training services, as defined in 42 United States Code
19 section 1395x, if prescribed by a primary care practitioner in either of
20 the following circumstances:

21 (a) The member is initially diagnosed with diabetes.

22 (b) For a member who has previously been diagnosed with diabetes,
23 either:

24 (i) A change occurs in the member's diagnosis, medical condition or
25 treatment regimen.

26 (ii) The member is not meeting appropriate clinical outcomes.

27 17. Pursuant to the terms and conditions that are approved by the
28 centers for medicare and medicaid services and subject to available
29 funding, traditional healing services, if both of the following apply:

30 (a) The member qualifies for services through the Indian health
31 service or a tribal facility pursuant to the conditions of participation
32 outlined in 42 Code of Federal Regulations section 136.12.

33 (b) The traditional healing service is delivered by or through the
34 Indian health service or a tribal facility.

35 18. SUBJECT TO APPROVAL BY THE CENTERS FOR MEDICARE AND MEDICAID
36 SERVICES, BREASTFEEDING AND LACTATION CARE SERVICES, INCLUDING
37 CONSULTATIONS, EDUCATION AND COUNSELING, THAT ARE PROVIDED IN INPATIENT,
38 OUTPATIENT, HOME-BASED AND GROUP SETTINGS.

39 B. The limits and exclusions for health and medical services
40 provided under this section are as follows:

41 1. Circumcision of newborn males is not a covered health and
42 medical service.

43 2. For eligible persons who are at least twenty-one years of age:

1 (a) Prosthetic devices do not include hearing aids, dentures or
2 bone-anchored hearing aids. Prosthetic devices, except prosthetic
3 implants, may be limited to \$12,500 per contract year.

4 (b) Percussive vests are not covered health and medical services.

5 (c) Durable medical equipment is limited to items covered by
6 medicare.

7 (d) Nonexperimental transplants do not include pancreas-only
8 transplants.

9 (e) Bariatric surgery procedures, including laparoscopic and open
10 gastric bypass and restrictive procedures, are not covered health and
11 medical services.

12 C. The system shall pay noncontracting providers only for health
13 and medical services as prescribed in subsection A of this section and as
14 prescribed by rule.

15 D. The director shall adopt rules necessary to limit, to the extent
16 possible, the scope, duration and amount of services, including maximum
17 limits for inpatient services that are consistent with federal regulations
18 under title XIX of the social security act (P.L. 89-97; 79 Stat. 344;
19 42 United States Code section 1396 (1980)). To the extent possible and
20 practicable, these rules shall provide for the prior approval of medically
21 necessary services provided pursuant to this chapter.

22 E. The director shall make available home health services in lieu
23 of hospitalization pursuant to contracts awarded under this article. For
24 the purposes of this subsection, "home health services" means the
25 provision of nursing services, home health aide services or medical
26 supplies, equipment and appliances that are provided on a part-time or
27 intermittent basis by a licensed home health agency within a member's
28 residence based on the orders of a physician or a primary care
29 practitioner. Home health agencies shall comply with the federal bonding
30 requirements in a manner prescribed by the administration.

31 F. The director shall adopt rules for the coverage of behavioral
32 health services for persons who are eligible under section 36-2901,
33 paragraph 6, subdivision (a). The administration acting through the
34 regional behavioral health authorities shall establish a diagnostic and
35 evaluation program to which other state agencies shall refer children who
36 are not already enrolled pursuant to this chapter and who may be in need
37 of behavioral health services. In addition to an evaluation, the
38 administration acting through regional behavioral health authorities shall
39 also identify children who may be eligible under section 36-2901,
40 paragraph 6, subdivision (a) or section 36-2931, paragraph 5 and shall
41 refer the children to the appropriate agency responsible for making the
42 final eligibility determination.

43 G. The director shall adopt rules providing for transportation
44 services and rules providing for copayment by members for transportation
45 for other than emergency purposes. Subject to approval by the centers for

1 medicare and medicaid services, nonemergency medical transportation shall
2 not be provided except for stretcher vans and ambulance transportation.
3 Prior authorization is required for transportation by stretcher van and
4 for medically necessary ambulance transportation initiated pursuant to a
5 physician's direction. Prior authorization is not required for medically
6 necessary ambulance transportation services rendered to members or
7 eligible persons initiated by dialing telephone number 911 or other
8 designated emergency response systems.

9 H. The director may adopt rules to allow the administration, at the
10 director's discretion, to use a second opinion procedure under which
11 surgery may not be eligible for coverage pursuant to this chapter without
12 documentation as to need by at least two physicians or primary care
13 practitioners.

14 I. If the director does not receive bids within the amounts
15 budgeted or if at any time the amount remaining in the Arizona health care
16 cost containment system fund is insufficient to pay for full contract
17 services for the remainder of the contract term, the administration, on
18 notification to system contractors at least thirty days in advance, may
19 modify the list of services required under subsection A of this section
20 for persons defined as eligible other than those persons defined pursuant
21 to section 36-2901, paragraph 6, subdivision (a). The director may also
22 suspend services or may limit categories of expense for services defined
23 as optional pursuant to title XIX of the social security act (P.L. 89-97;
24 79 Stat. 344; 42 United States Code section 1396 (1980)) for persons
25 defined pursuant to section 36-2901, paragraph 6, subdivision (a). Such
26 reductions or suspensions do not apply to the continuity of care for
27 persons already receiving these services.

28 J. All health and medical services provided under this article
29 shall be provided in the geographic service area of the member, except:

30 1. Emergency services and specialty services provided pursuant to
31 section 36-2908.

32 2. That the director may allow the delivery of health and medical
33 services in other than the geographic service area in this state or in an
34 adjoining state if the director determines that medical practice patterns
35 justify the delivery of services or a net reduction in transportation
36 costs can reasonably be expected. Notwithstanding the definition of
37 physician as prescribed in section 36-2901, if services are procured from
38 a physician or primary care practitioner in an adjoining state, the
39 physician or primary care practitioner shall be licensed to practice in
40 that state pursuant to licensing statutes in that state that are similar
41 to title 32, chapter 13, 15, 17 or 25 and shall complete a provider
42 agreement for this state.

43 K. Covered outpatient services shall be subcontracted by a primary
44 care physician or primary care practitioner to other licensed health care
45 providers to the extent practicable for purposes including, but not

1 limited to, making health care services available to underserved areas,
2 reducing costs of providing medical care and reducing transportation
3 costs.

4 L. The director shall adopt rules that prescribe the coordination
5 of medical care for persons who are eligible for system services. The
6 rules shall include provisions for transferring patients and medical
7 records and initiating medical care.

8 M. Pursuant to the terms and conditions that are approved by the
9 centers for medicare and medicaid services and subject to available
10 funding, the director shall implement limited benefit coverage prerelease
11 services to eligible incarcerated individuals and committed youth for up
12 to ninety days immediately before ~~the individuals~~ EACH INDIVIDUAL'S or
13 committed youth's expected date of release from a prison, jail, secure
14 care facility or tribal correctional facility.

15 N. Notwithstanding section 36-2901.08, monies from the hospital
16 assessment fund established by section 36-2901.09 may not be used to
17 provide any of the following:

18 1. Chiropractic services as prescribed in subsection A, paragraph
19 15 of this section.

20 2. Diabetes outpatient self-management training services as
21 prescribed in subsection A, paragraph 16 of this section.

22 3. Speech therapy provided in an outpatient setting to eligible
23 persons who are at least twenty-one years of age.

24 4. Cochlear implants to eligible persons who are at least
25 twenty-one years of age.

26 0. For the purposes of this section:

27 1. "Ambulance" has the same meaning prescribed in section 36-2201.

28 2. "Tribal facility" has the same meaning prescribed in section
29 36-2981.

30 <<Sec. 4. Section 41-619.51, Arizona Revised Statutes, is amended
31 to read:

32 41-619.51. Definitions

33 In this article, unless the context otherwise requires:

34 1. "Agency" means the supreme court, the department of economic
35 security, the department of child safety, the department of education, the
36 department of health services, the department of juvenile corrections, the
37 department of emergency and military affairs, the department of public
38 safety, the department of transportation, the state real estate
39 department, the department of insurance and financial institutions, the
40 Arizona game and fish department, the Arizona department of agriculture,
41 the board of examiners of nursing care institution administrators and
42 assisted living facility managers, the state board of dental examiners,
43 the Arizona state board of pharmacy, the board of physical therapy, the
44 state board of psychologist examiners, the board of athletic training, the
45 board of occupational therapy examiners, the state board of podiatry

1 examiners, the acupuncture board of examiners, the state board of
2 technical registration, the board of massage therapy, the board of
3 behavioral health examiners or the Arizona department of housing.

4 2. "Board" means the board of fingerprinting.

5 3. "Central registry exception" means notification to the
6 department of economic security, the department of child safety or the
7 department of health services, as appropriate, pursuant to section
8 41-619.57 that the person is not disqualified because of a central
9 registry check conducted pursuant to section 8-804.

10 4. "Expedited review" means an examination, in accordance with
11 board rule, of the documents an applicant submits by the board or its
12 hearing officer without the applicant being present.

13 5. "Good cause exception" means the issuance of a fingerprint
14 clearance card to an employee pursuant to section 41-619.55.

15 6. "Person" means a person who is required to be fingerprinted
16 pursuant to this article or who is subject to a central registry check and
17 any of the following:

- 18 (a) Section 3-314.
- 19 (b) Section 8-105.
- 20 (c) Section 8-322.
- 21 (d) Section 8-463.
- 22 (e) Section 8-509.
- 23 (f) Section 8-802.
- 24 (g) Section 8-804.
- 25 (h) Section 15-183.
- 26 (i) Section 15-503.
- 27 (j) Section 15-512.
- 28 (k) Section 15-534.
- 29 (l) Section 15-763.01.
- 30 (m) Section 15-782.02.
- 31 (n) Section 15-1330.
- 32 (o) Section 15-1881.
- 33 (p) Section 17-215.
- 34 (q) Section 28-3228.
- 35 (r) Section 28-3413.
- 36 (s) Section 32-122.02.
- 37 (t) Section 32-122.05.
- 38 (u) Section 32-122.06.
- 39 (v) Section 32-823.
- 40 (w) Section 32-1232.
- 41 (x) Section 32-1276.01.
- 42 (y) Section 32-1284.
- 43 (z) Section 32-1297.01.
- 44 (aa) Section 32-1904.
- 45 (bb) Section 32-1941.

1 (cc) Section 32-1982.
2 (dd) Section 32-2022.
3 (ee) Section 32-2063.
4 (ff) Section 32-2108.01.
5 (gg) Section 32-2123.
6 (hh) Section 32-2371.
7 (ii) Section 32-3271.
8 (jj) Section 32-3430.
9 (kk) Section 32-3620.
10 (ll) Section 32-3668.
11 (mm) Section 32-3669.
12 (nn) Section 32-3922.
13 (oo) Section 32-3924.
14 (pp) Section 32-4128.
15 (qq) Section 32-4222.
16 (rr) Section 36-113.
17 (ss) Section 36-207.
18 (tt) Section 36-411.
19 (uu) Section 36-425.03.
20 (vv) Section 36-446.04.
21 (ww) Section 36-594.01.
22 (xx) Section 36-594.02.
23 (yy) Section 36-766.01.
24 [(zz) SECTION 36-767.01.]
25 [(~~zz~~) [(aaa)] Section 36-882.
26 [(~~aaa~~) [(bbb)] Section 36-883.02.
27 [(~~bbb~~) [(ccc)] Section 36-897.01.
28 [(~~ccc~~) [(ddd)] Section 36-897.03.
29 [(~~ddd~~) [(eee)] Section 36-1940.
30 [(~~eee~~) [(fff)] Section 36-1940.01.
31 [(~~fff~~) [(ggg)] Section 36-2069.
32 [(~~ggg~~) [(hhh)] Section 36-3008.
33 [(~~hhh~~) [(iii)] Section 41-619.53.
34 [(~~iii~~) [(jjj)] Section 41-1964.
35 [(~~jjj~~) [(kkk)] Section 41-1967.01.
36 [(~~kkk~~) [(lll)] Section 41-1968.
37 [(~~lll~~) [(mmm)] Section 41-1969.
38 [(~~mmm~~) [(nnn)] Section 41-2814.
39 [(~~nnn~~) [(ooo)] Section 41-4025.
40 [(~~ooo~~) [(ppp)] Section 46-141, subsection A or B.
41 [(~~ppp~~) [(qqq)] Section 46-321.>>
42 <<Sec. 5. Section 41-1758, Arizona Revised Statutes, is amended to
43 read:
44 41-1758. Definitions
45 In this article, unless the context otherwise requires:

1 1. "Agency" means the supreme court, the department of economic
2 security, the department of child safety, the department of education, the
3 department of health services, the department of juvenile corrections, the
4 department of emergency and military affairs, the department of public
5 safety, the department of transportation, the state real estate
6 department, the department of insurance and financial institutions, the
7 board of fingerprinting, the Arizona game and fish department, the Arizona
8 department of agriculture, the board of examiners of nursing care
9 institution administrators and assisted living facility managers, the
10 state board of dental examiners, the Arizona state board of pharmacy, the
11 board of physical therapy, the state board of psychologist examiners, the
12 board of athletic training, the board of occupational therapy examiners,
13 the state board of podiatry examiners, the acupuncture board of examiners,
14 the state board of technical registration, the board of massage therapy,
15 the board of behavioral health examiners or the Arizona department of
16 housing.

17 2. "Division" means the fingerprinting division in the department
18 of public safety.

19 3. "Electronic or internet-based fingerprinting services" means a
20 secure system for digitizing applicant fingerprints and transmitting the
21 applicant data and fingerprints of a person or entity submitting
22 fingerprints to the department of public safety for any authorized purpose
23 under this title. For the purposes of this paragraph, "secure system"
24 means a system that complies with the information technology security
25 policy approved by the department of public safety.

26 4. "Good cause exception" means the issuance of a fingerprint
27 clearance card to an applicant pursuant to section 41-619.55.

28 5. "Person" means a person who is required to be fingerprinted
29 pursuant to any of the following:

- 30 (a) Section 3-314.
- 31 (b) Section 8-105.
- 32 (c) Section 8-322.
- 33 (d) Section 8-463.
- 34 (e) Section 8-509.
- 35 (f) Section 8-802.
- 36 (g) Section 15-183.
- 37 (h) Section 15-503.
- 38 (i) Section 15-512.
- 39 (j) Section 15-534.
- 40 (k) Section 15-763.01.
- 41 (l) Section 15-782.02.
- 42 (m) Section 15-1330.
- 43 (n) Section 15-1881.
- 44 (o) Section 17-215.
- 45 (p) Section 28-3228.

Senate Amendments to H.B. 2051

1 (q) Section 28-3413.
2 (r) Section 32-122.02.
3 (s) Section 32-122.05.
4 (t) Section 32-122.06.
5 (u) Section 32-823.
6 (v) Section 32-1232.
7 (w) Section 32-1276.01.
8 (x) Section 32-1284.
9 (y) Section 32-1297.01.
10 (z) Section 32-1904.
11 (aa) Section 32-1941.
12 (bb) Section 32-1982.
13 (cc) Section 32-2022.
14 (dd) Section 32-2063.
15 (ee) Section 32-2108.01.
16 (ff) Section 32-2123.
17 (gg) Section 32-2371.
18 (hh) Section 32-3271.
19 (ii) Section 32-3430.
20 (jj) Section 32-3620.
21 (kk) Section 32-3668.
22 (ll) Section 32-3669.
23 (mm) Section 32-3922.
24 (nn) Section 32-3924.
25 (oo) Section 32-4128.
26 (pp) Section 32-4222.
27 (qq) Section 36-113.
28 (rr) Section 36-207.
29 (ss) Section 36-411.
30 (tt) Section 36-425.03.
31 (uu) Section 36-446.04.
32 (vv) Section 36-594.01.
33 (ww) Section 36-594.02.
34 (xx) Section 36-766.01.
35 [(yy) SECTION 36-767.01.]
36 [(yy)] [(zz)] Section 36-882.
37 [(zz)] [(aaa)] Section 36-883.02.
38 [(aaa)] [(bbb)] Section 36-897.01.
39 [(bbb)] [(ccc)] Section 36-897.03.
40 [(ccc)] [(ddd)] Section 36-1940.
41 [(ddd)] [(eee)] Section 36-1940.01.
42 [(eee)] [(fff)] Section 36-2069.
43 [(fff)] [(ggg)] Section 36-3008.
44 [(ggg)] [(hhh)] Section 41-619.52.
45 [(hhh)] [(iii)] Section 41-619.53.

1 ~~[(jjj)]~~ ~~[(jjj)]~~ Section 41-1964.
2 ~~[(jjj)]~~ ~~[(kkk)]~~ Section 41-1967.01.
3 ~~[(kkk)]~~ ~~[(lll)]~~ Section 41-1968.
4 ~~[(jjj)]~~ ~~[(mmm)]~~ Section 41-1969.
5 ~~[(mmm)]~~ ~~[(nnn)]~~ Section 41-2814.
6 ~~[(mmm)]~~ ~~[(ooo)]~~ Section 41-4025.
7 ~~[(ooo)]~~ ~~[(ppp)]~~ Section 46-141, subsection A or B.
8 ~~[(ppp)]~~ ~~[(qqq)]~~ Section 46-321.
9 6. "Rap back services" has the same meaning prescribed in section
10 41-1750.
11 7. "Vulnerable adult" has the same meaning prescribed in section
12 13-3623.>>
13 <<Sec. 6. Section 41-1758.01, Arizona Revised Statutes, is amended
14 to read:
15 41-1758.01. Fingerprinting division; powers and duties
16 A. The fingerprinting division is established in the department of
17 public safety and shall:
18 1. Conduct fingerprint background checks for persons and applicants
19 who are seeking licenses from state agencies, employment with licensees,
20 contract providers and state agencies or employment or educational
21 opportunities with agencies that require fingerprint background checks
22 pursuant to sections 3-314, 8-105, 8-322, 8-463, 8-509, 8-802, 15-183,
23 15-503, 15-512, 15-534, 15-763.01, 15-782.02, 15-1330, 15-1881, 17-215,
24 28-3228, 28-3413, 32-122.02, 32-122.05, 32-122.06, 32-823, 32-1232,
25 32-1276.01, 32-1284, 32-1297.01, 32-1904, 32-1941, 32-1982, 32-2022,
26 32-2063, 32-2108.01, 32-2123, 32-2371, 32-3271, 32-3430, 32-3620, 32-3668,
27 32-3669, 32-3922, 32-3924, 32-4128, 32-4222, 36-113, 36-207, 36-411,
28 36-425.03, 36-446.04, 36-594.01, 36-594.02, 36-766.01, [36-767.01.]
29 36-882, 36-883.02, 36-897.01, 36-897.03, 36-1940, 36-1940.01, 36-2069,
30 36-3008, 41-619.52, 41-619.53, 41-1964, 41-1967.01, 41-1968, 41-1969,
31 41-2814 and 41-4025, section 46-141, subsection A or B and section 46-321.
32 2. Issue fingerprint clearance cards. On issuance, a fingerprint
33 clearance card becomes the personal property of the cardholder and the
34 cardholder shall retain possession of the fingerprint clearance card.
35 3. On submission of an application for a fingerprint clearance
36 card, collect the fees established by the board of fingerprinting pursuant
37 to section 41-619.53 and deposit, pursuant to sections 35-146 and 35-147,
38 the monies collected in the board of fingerprinting fund.
39 4. Inform in writing each person who submits fingerprints for a
40 fingerprint background check of the right to petition the board of
41 fingerprinting for a good cause exception pursuant to section 41-1758.03,
42 41-1758.04 or 41-1758.07.
43 5. If after conducting a state and federal criminal history records
44 check the division determines that it is not authorized to issue a
45 fingerprint clearance card to a person, inform the person in writing that

1 the division is not authorized to issue a fingerprint clearance card. The
2 notice shall include the criminal history information on which the denial
3 was based. This criminal history information is subject to dissemination
4 restrictions pursuant to section 41-1750 and Public Law 92-544.

5 6. Notify the person in writing if the division suspends, revokes
6 or places a driving restriction notation on a fingerprint clearance card
7 pursuant to section 41-1758.04. The notice shall include the criminal
8 history information on which the suspension, revocation or placement of
9 the driving restriction notation was based. This criminal history
10 information is subject to dissemination restrictions pursuant to section
11 41-1750 and Public Law 92-544.

12 7. Administer and enforce this article.

13 B. The fingerprinting division may contract for electronic or
14 internet-based fingerprinting services through an entity or entities for
15 the acquisition and transmission of applicant fingerprint and data
16 submissions to the department, including identity verified fingerprints
17 pursuant to section 15-106. The entity or entities contracted by the
18 department of public safety may charge the applicant a fee for services
19 provided pursuant to this article. The entity or entities contracted by
20 the department of public safety shall comply with:

21 1. All information privacy and security measures and submission
22 standards established by the department of public safety.

23 2. The information technology security policy approved by the
24 department of public safety.>>

25 Enroll and engross to conform

26 Amend title to conform

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